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TEMPORARY WORK - GOVERNMENT AUTHORISED EXCHANGE VISA



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TEMPORARY WORK - GOVERNMENT AUTHORISED EXCHANGE VISA

The UK Government Authorised Exchange Visa is open to individuals who wish to come to the UK for a period of 12 or 24 months to take part in an approved internship, training, work experience or research programme.

The Government Authorised Exchange Visa is not a route to settlement, but individuals on the Government Authorised Exchange route can be joined by a dependent partner and children under the age of 18.

Requirements for a UK Government Authorised Exchange Visa

In order to qualify for a Temporary Work – Government Authorised Exchange Visa, you will need to satisfy UK Visas and Immigration that:

- You have a valid Certificate of Sponsorship for the role you are planning to undertake, issued by an overarching body (sponsor) that holds a valid Temporary Work – Government Authorised Exchange sponsor licence;
- The role you are planning to undertake meets the requirements of an approved Government Authorised Exchange scheme;
- The role does not fill a vacancy in the UK workforce;
- The role appears in Table 1 or Table 2 of Appendix Skilled Occupations;
- You have sufficient personal savings to support yourself in the UK;
- Your application does not fall for refusal under the general grounds for refusal;
- You have provided a valid TB certificate, if required.

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The exact requirements you will need to satisfy may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice. (<https://www.google.co.uk/search?q=richmond+chambers+in>)

To discuss your UK Government Authorised Exchange Visa application with one of our immigration barristers, contact our Temporary Worker lawyers on 0203 617 9173 or complete our enquiry form below.

Government Authorised Exchange Visa Certificate of Sponsorship (CoS) Requirement

In order to obtain a Government Authorised Exchange Visa you will need to have a valid Certificate of Sponsorship issued by a Home Office approved sponsor for the role you are applying to undertake in the UK.

Your sponsor will need to hold a valid Temporary Work – Government Authorised Exchange sponsor licence and be authorised by the Home Office to sponsor individuals on the particular scheme that you have applied to participate in.

Your sponsor will be the overarching body responsible for the approved internship, training, work experience or research programme that you wish to undertake.

The Home Office has published a list of all approved Government Authorised Exchange schemes (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-government-authorised-exchange-schemes>) and their respective Home Office approved overarching bodies (sponsors).

Your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless you were last granted permission on the Government Authorised Exchange route and are applying to continue working for the same sponsor as in your last permission.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Temporary Work – Government Authorised Exchange Visa application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- A start date which is no more than 3 months after the date of your Temporary Work – Government Authorised Exchange Visa application;
- Confirmation that the role meets the requirements of the individual exchange scheme;
- Confirmation that the role does not fill a vacancy in the workforce;
- Confirmation that the role appears in Table 1 or Table 2 of Appendix Skilled Occupations;
- Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office.

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Financial Requirement for a Government Authorised Exchange Visa

English Language Requirement for a Government Authorised Exchange Visa

Parental Consent Requirement for the Government Authorised Exchange Route

The written consent can be provided by both of your parents, just one parent if that parent has sole legal responsibility for you, or your legal guardian.

Duration of a Temporary Work – Government Authorised Exchange Visa

If you apply for permission to stay and your application is approved then you will be granted whichever is the shortest of either the period of the job on your Certificate of Sponsorship plus 14 days after that period (the end date of the Certificate of Sponsorship may be up to

the maximum period of time that you are permitted to spend in the UK under the terms of the specific scheme on which you applied to participate), or if you are applying to participate in the same scheme, a period of 14 days plus the difference between the maximum period of time that you are permitted to spend in the UK under the terms of the specific approved scheme on which you applied to participate and the period that you have already been granted permission to participate in that scheme, or the difference between 25 months and the duration of the period during which you have already held continuous permission on the Government Authorised Exchange route.

The maximum period of time permitted under the terms of your approved Government Authorised Exchange scheme will be either 12 or 24 months depending on the scheme.

Extensions of Stay as a Government Authorised Exchange Worker

Government Authorised Exchange Workers may apply to extend their stay for up to a maximum of either 12 or 24 months depending on the scheme.

Settlement on the Government Authorised Exchange Worker Route

The Temporary Work – Government Authorised Exchange Visa is not a route to settlement. However, it may be possible to apply from within the UK to switch into another immigration route which can lead to indefinite leave to remain.

Switching into the Government Authorised Exchange Route

It is generally not possible to switch into the Government Authorised Exchange route from within the UK.

An exception is made for applicants who have, or were last granted, permission as a Student and who are, or were last sponsored by, either a higher education provider with a track record of compliance or an overseas higher education institution, to do a short-term study abroad programme in the UK. Such applicants can extend their stay in the Government Authorised Exchange route if they have completed a UK recognised bachelor's or postgraduate degree during their last period of permission and if they are currently sponsored for either a period of postgraduate professional training or work experience which is required to gain a professional qualification or registration in the same field as their degree or an internship for up to 12 months which is directly related to their degree. Applicants must not be filling a permanent vacancy and their sponsor must not intend to employ them in the UK once the training or work experience has been completed.

Conditions of Stay on a Temporary Work – Government Authorised Exchange Visa

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If your application for a Temporary Work – Government Authorised Exchange Visa is successful you will be able to work for your sponsor in the job described on your Certificate of Sponsorship, including volunteering and job shadowing if recorded on the Certificate of Sponsorship. You will also be able to undertake supplementary employment and studies. You will not be able to access public funds.

Government Authorised Exchange Visa Processing Times

Most UK Government Authorised Exchange Visa applications are decided within 3 weeks. It may be possible to secure a faster decision if the visa application centre offers a priority service.

Most applications from Government Authorised Exchange Workers to extend their stay are decided within 8 weeks. You can also secure a decision within 5 days if you apply via the Priority Service or by the end of the next working day if you apply via the Super Priority Service.

Dependants

If you are granted entry clearance or leave to remain as a Government Authorised Exchange Worker you can be joined or accompanied by a dependent partner and dependent children under the age of 18.

UK Visa Refusals

If your application for a Temporary Work – Government Authorised Exchange Visa is refused, you may be able to make a fresh application or apply for Administrative Review of the refusal decision.

How Our Immigration Barristers Can Help

Our team of immigration barristers has experience in assisting individuals who wish to come to the UK to take part in an approved internship, training, work experience or research programme. Our barristers can help you to ensure that you meet your start date and that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to individuals who wish to come to the UK to take part in an approved internship, training, work experience or research programme as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

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Fresh applications, Administrative reviews and Judicial reviews for Temporary Workers

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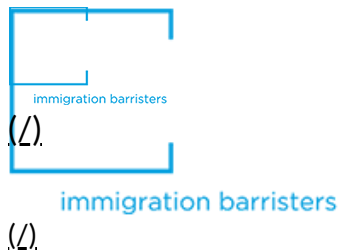
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